

TENTATIVE RULINGS FOR MAY 5, 2026
Department R17
BEFORE THE HONORABLE JANET M. FRANGIE
(sitting on assignment)

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

1.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2508307	<i>Xiang Yu v Central Floor Depot, Inc., et al</i>	Defendant Sonny Gu's attorney's Motion to be Relieved

Tentative Ruling:

Motion:

The unopposed motion by Attorneys Tundis & Lester to be relieved as attorneys of record for Defendant Sonny Gu is granted, effective upon the filing of the proof of service of the signed Order upon Defendant Sonny Gu. If Defendant's current address remains unknown, moving party is ordered to comply with Code of Civil Procedure section 1011 (b) and rule 3.252 of the California Rules of Court regarding service.

Moving party is directed to give notice of ruling.

2.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVSB2510514	<i>Efren Angel Marquez Gonzalez v American Honda Motor Co., Inc., et al</i>	Defendant American Honda Motor Co., Inc.'s Demurrer

Tentative Ruling:

The demurrer to the Complaint filed on February 9, 2026, is deemed moot by the filing of Plaintiff's First Amended Complaint on April 22, 2026.

Defendant is ordered to give notice to Plaintiff.

3.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVSB2503117	<i>Top Choice Corp., v. One Up Sales & Marketing, Inc., et al</i>	Defendant One Up Sales & Marketing Inc.'s Motion to Vacate Entry of Default

Tentative Ruling:

Motion to Vacate Default:

The motion is granted. The default is set aside and moving party is ordered to file an original of the Answer within ten days. The Court denies the request for sanctions by Plaintiff. There is no supporting Declaration under oath to substantiate the costs or authority for imposing this sanction in this action.

Moving party is ordered to give notice to Plaintiff.